c. At oral argument, Justice Sotomayor appeared to suggest that the Court erred a century ago in finding that corporations were "persons" entitled to protection under the 14th Amendment. Similar claims have been advanced in the popular press, and were repeated by some Senators and at least one witness at last week's hearing. Would a decision by the Court that corporations do not have First Amendment rights to political speech have been a more radical conclusion than the ruling announced by the majority in *Citizens United*?

Answer: Clearly so. Since at least the 1886 case *Santa Clara County v. Southern Pacific Railroad*, 118 U.S. 394, it has been settled that the equal protection clause applies to corporations. As noted, this holding is firmly rooted in the earliest constitutional precedents, *see e.g. Dartmouth College v. Woodward*, 17 U.S. 518 (1819) and in the common law. Corporations are not people, of course, and there is nothing remarkable in that observation. But they are associations of people, bound together in a complex web of imperfect contracts. The law allows for the legal fiction of a corporation because it benefits the citizenry and the members of the corporation. Imagine if corporations were not treated as "persons:" to sue a corporation, you would have to name every shareholder, and serve each; every time one person sold a share of stock, all property owned by the association would have to be retitled to reflect the new ownership. And imagine if corporations—associations of people— did not enjoy have constitutional rights: the government could seize corporate property without due process or just compensation; corporations would not have rights against warrantless, unreasonable searches of their properties. And there would be no particular reason to extend such protections to partnerships or unions or informal associations, either— after all, unions are not persons either, but artificial entities. Like corporations, they have rights because they are made up of people.

When Justice Sotomayor suggests that perhaps we should not grant corporations constitutional rights, she proposes a radical remake of American Constitutional and common law and a willingness to overrule literally dozens, if not hundreds, of precedents and to overturn innumerable statutes. First Amendment rights are among the most common rights exercised in association with other people. The lone protestor is not the norm in America, but the oddball. The normal American protest is a rally or march. Americans form groups to lobby and to coordinate their efforts. Most enterprises in America now assume the corporate form: colleges, churches, local charities and historical societies, and virtually every small business. The true judicial radicals are those who would deprive Americans of their rights on the grounds that they have joined in the corporate form.

4. In an exchange with Sen. Franken regarding his proposal to bar political spending by any U.S. corporation with more than 20% of shares held by foreign investors, Sen. Franken asserted that Delaware's corporations law treated 20% ownership as "control" of a corporation. You responded that "laws are written for different purposes."

   a. What, in your understanding, does the "corporate control" threshold in corporations law seek to measure or define?

Answer: Laws defining corporate control typically exist for the purpose of securities regulation or for regulating and limiting conflicts of interest within management. Senator Franken was referring, I believe, to 8 Del. Code Sec. 203 (c)(4). The statute creates a rebutable presumption of "control" at 20 percent ownership. The statute, however, is for the purpose of regulating corporate takeovers, including anti-takeover and poison pill provisions, and corporations may opt out of the Chapter

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